

23STCV22171 23STCV22171

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SUPERIOR

COURT OF CALIFORNIA, COUNTY OF LOS ANGELES

Civil

Division

Central

District, Stanley Mosk Courthouse, Department 311

Tentative

Ruling

23STCV22171

HRAYER

ESTANBOULIAN vs LOS ANGELES UNIFIED SCHOOL DISTRICT, et al.

August

6, 2026

8:30

AM

NATURE OF PROCEEDINGS:

PLAINTIFF'S MOTION TO QUASH DEFENDANT LOS ANGELES UNIFIED SCHOOL DISTRICT'S
DEPOSITION SUBOENAS FOR PRODUCTION OF BUSINESS RECORDS TO CUSTODIAN OF RECORDS
FOR PROVIDENCE CEDARS SINAI TARZANA MEDICAL CENTER

RULING:

The Court grants the Motion.

The Court quashes the Deposition Subpoenas for
Production of Business Records issued to the Custodians of Records for
Providence Cedars Sinai Tarzana Medical Center.

Plaintiff to give notice.

I.

BACKGROUND

On September 14, 2023,

HRAYER

ESTANBOULIAN (Plaintiff) filed a Complaint against LOS ANGELES UNIFIED SCHOOL
DISTRICT and CARLOS ANTONIO MEJIA CORTEZ (Defendants), listing a Cause of
Action for: "Negligent Act or Omission of Public Entity or Public Employee
[CAL. GOV'T CODE § 815.2 AND CAL. VEH. CODE § 22350]."

Plaintiff alleges that

Defendants' negligence caused a school bus to collide with Plaintiff's 2021
Volkswagen Tiguan, causing personal and property damages.

On July 9, 2026, Plaintiff filed the Motion to Quash

Defendant LOS ANGELES UNIFIED SCHOOL DISTRICT's (Defendant) deposition
subpoenas for production of business records to custodian of records issued to Providence
Cedars Sinai Tarzana Medical Center.

Defendant opposes, based

on arguments such as that Plaintiff failed to identify private information that
would involve a serious invasion.

II.

LEGAL STANDARD

"[U]pon

motion reasonably made by the party,' judges
may rule upon motions for quashing, modifying or compelling compliance with,
subpoenas." (Lee v. Swansboro Country

Property Owners Ass'n (2007) 151 Cal.App.4th 575, 582-583.) A court may quash a subpoena entirely or partially, and issue an order to protect parties, witnesses or consumers from unreasonable or oppressive demands including violations of privacy. (Code Civ. Proc., § 1987.1.)

III.

ANALYSIS

Plaintiff moves to quash reportedly overbroad subpoenas for private medical records, seeking the following content:

All

DOCUMENTS and records pertaining to the care, treatment and examination of: Hrayer Estanboulian, DOB: 05/27/1958, including but not limited to, sign-in sheets, inpatient and outpatient charts and records, emergency room and lab reports, pathology reports, prescription and pharmacy records, CAT scans, x-rays, MRI's, EKG and EMG reports, and any other records pertaining to Hrayer Estanboulian.

All

DOCUMENT(S) pertaining to or constituting complete billing records including but not limited to any records/documents that may be stored digitally and/or electronically: charges, explanation of benefits, payments, adjustments, write-offs, balances due, insurance records and itemized billing charges regarding any and all care, treatment, examinations or other professional services(s) provided by Hrayer Estanboulian, DOB: 05/27/1958.

(Motion, pp. 4-5.)

Defendant contends that the subpoenas are not overbroad, where Plaintiff fails to specify the private content and there is implied waiver caused by Plaintiff's claims. Defendant further maintains that it is entitled to records reasonably bearing on alleged medical conditions, preexisting complaints, alternative causes, or symptoms progression before and after the incident.

Preliminarily,

applicable law provides that, once good cause for production has been shown, the objecting party has the burden to file evidence to justify objections including those based upon privacy. (Kirkland

v. Superior Court (2002) 95 Cal.App.4th 92, 97-98.)

"Mere speculation as to the possibility that some portion of the records might be relevant to some substantive issue does not suffice" for showing direct relevance as to private information sought in discovery. (Davis

v. Superior Court (1992) 7 Cal.App.4th 1008, 1017-1020 [directing trial court to grant motion to quash as to discovery request that was not narrowly drawn to enable the court to evaluate the appropriate extent of disclosure].

Cf. Bd. of Registered Nursing v. Superior Court (2021) 59 Cal.App. 5th 1011, 1038 ["defendants have not shown that these broad categories are reasonably calculated to lead to the discovery of admissible evidence.

Moreover, even if these categories do contain some records that would be discoverable, their probative value is vastly outweighed by the privileged and private nature of the other records swept up in the production."].) Absent showings of direct relevance, compelling need, and unavailability of alternative sources, a trial court only could find that a privacy interest prevails. (Ombudsman Services of No. Cal.

v. Superior Court (2007) 154 Cal.App.4th 1233, 1251, disapproved on other grounds by Williams v. Superior Court (2017) 3 Cal.5th 531, 557.)

Patients have a

reasonable expectation of privacy as to their medical information that is not directly relevant to a particular condition the patient has placed in issue. (California Consumer Health Care Council v. Kaiser Foundation Health Plan, Inc. (2006) 142 Cal.App.4th 21, 31.) "[M]edical records are private." (Los Angeles Gay

and Lesbian Center v. Superior Court (2011) 194 Cal.App.4th 288, 308.)

Privacy interests in physician's files broadly may involve information about symptoms, family history, diagnoses, tests, and treatment, et cetera. (County of Los Angeles v. Superior Court (2021) 65 Cal.App 5th 621, 641.)

"[I]ndividuals have a

legally recognized privacy interest in their personal financial information." (International Federation of Professional & Technical Engineers, Local 21, AFL-CIO v. Superior Court (2007) 42 Cal.4th 319, 330.)

"[N]otwithstanding a

waiver, any disclosure of confidential or private information must be supported by a showing of compelling need and accomplished in a manner which protects, insofar as is practical, the patient's privacy." (San Diego Trolley, Inc. v. Superior Court (2001) 87 Cal.App.4th

1083, 1093, disapproved on other grounds by Williams v. Superior Court (2017) 3 Cal.5th 531, 557.) “When a party raises her physical condition as an issue in a case, she waives the right to claim that the relevant medical records are privileged.” (Vesco v. Superior Court (2013) 221 Cal.App.4th 275, 279.) (Underscoring added.) “A patient tenders the issue of his physical health if he files an action for personal injuries but only as to information which relates to the claimed injuries.” (Slagle v. Superior Court (1989) 211 Cal.App.3d 1309, 1313, 1315 [“If petitioner fears that the medical records ordered produced will reveal information not relevant to the condition of his eyesight at the time of the accident, he may request an in camera inspection of the records to segregate the irrelevant information.”].)

“[E]ven when a plaintiff files an action that places his or her medical records at issue, waivers of constitutional rights are narrowly construed and not lightly found.” (Bearman v. Superior Court (2004) 117 Cal.App.4th 463, 473.) “The patient thus is not obligated to sacrifice all privacy to seek redress for a specific mental or emotional injury; the scope of the inquiry permitted depends upon the nature of the injuries which the patient-litigant himself has brought before the court.” (Britt v. Superior Court (1978) 20 Cal.3d 844, 864.) Although discovery of other stressors may be relevant, the party seeking private information has the burden to show that the information is directly relevant to the claims, by identifying the specific emotional injuries claimed, and showing a nexus between the claimed damages and distress or other harm which may be shown by private information. (E.g., Brenda L. v. Superior Court (1998) 65 Cal.App.4th 794, 801-802.)

Here, the medical and financial records from the health care provider are private, without any need for a further showing by Plaintiff.

As to that information, Defendant has not shown that all very broadly requested content would be directly relevant to a defense against the allegations, especially where medical records created over the years are likely to involve unrelated conditions and treatments such as for the common flu.

IV.

CONCLUSION

Therefore, the Court grants
the Motion, for reasons stated.